

16. **Solicitor.**—A trustee, whether expressly or constructively such (*b*), who is a *solicitor*, cannot charge for his professional labours, but will be allowed merely his costs out of pocket (*c*), unless there be a special contract or direction to that effect (*d*); and even then he cannot charge for matters not strictly belonging to the professional character, such as attendances for paying premiums on policies, for transfers of stock, attendances on proctors or auctioneers, attendances on paying legacies or debts (*e*), [unless such non-professional charges are expressly authorized. Where the will authorized a solicitor trustee to make the usual professional or *other proper and reasonable* charges for all business done and time expended in relation to the trusts of the will, whether such business was usually within the business of a solicitor or not, charges for business not strictly of a professional character were allowed (*f*). But where the solicitor trustee was authorized to make the usual professional charges, and was to be entitled “to make the same professional charges and to receive the same pecuniary emoluments and remuneration for all business done by him, and all attendances, time and trouble given and bestowed by him, in or about the execution of the trusts and powers of the will, or the management and administration of the trust estate, as if he, not being himself a trustee or executor, were employed by the trustee or executor,” non-professional charges were disallowed (*g*). And] a trustee who in that character invests the trust fund upon mortgage, and acts also for the mortgagor, is not accountable to the trust for the professional profits made by the mortgage and which are paid by the mortgagor (*h*).

Partners.—As the solicitor-trustee himself cannot charge,

(*b*) Pollard v. Doyle, 1 Dr. & Sm 319.

(*c*) New v. Jones, Exch. Aug. 9, 1833. *q* Byth. by Jarm. 338; Moore v. Frowd, 3 M. & Cr. 46; Fraser v. Palmer, 4 Y. & C. 515; York v. Brown, 1 Coll. 260; Broughton v. Broughton, 5 De G. M. & G. 160.

(*d*) *In re* Sherwood, 3 Beav. 338;

and see Douglas v. Archbutt, 2 De G. & J. 148.

(*e*) Harbin v. Darby, 28 Beav. 325.

[(*f*) *Re* Ames, 25 Ch. D. 72.]

[(*g*) *Re* Chapple, 27 Ch. D. 584; see the observations of Kay, J. in this case as to inserting a power authorizing non-professional charges.]

(*h*) Whitney v. Smith, 4 L. R. Ch. App. 513.